

Public

Ref: FOI/25/214

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23 January 2026

Dear requester

Request for Information

Thank you for your request for information which was received by NESO on 22 December 2025.

Your request has been considered under the Environmental Information Regulations 2004 (EIR). This is because information about connection agreements relates to a measure that could affect the environment and therefore meets the definition of 'environmental information' provided at Regulation 2(1)(c) of the EIR. The exemption at Section 39 of the Freedom of Information Act 2000 (FOIA) covers information that a public body is required to consider under the EIR and has the effect of routing all requests for environmental information via the EIR rather than the FOIA.

Request

You asked us:

Specifically, I am seeking aggregated, non-confidential data showing:

- 1. The total number of Transmission Demand projects and corresponding installed capacity (MW) that have met the M1 (Initiate Planning Consent) milestone, split into Phase 1 and Phase 2 status, at the relevant cut-off date for the G2WQ process;*
- 2. The total number of Transmission Demand projects and corresponding installed capacity (MW) that have met the M2 (Obtained Planning Consent) milestone, split into Phase 1 and Phase 2 status, at the relevant cut-off date for the G2WQ process;*

Our response

We can confirm that we hold recorded information in scope of your request.

Our Connections tool does have an internal milestones report that shows M1, M2 and other milestone entries for each project. However, this report cannot be exported (e.g. to a spreadsheet). The underlying data model records milestones as multiple line items per project rather than as a structured dataset. The current system is very much designed for the management of individual cases and is not set up for the kind of reporting required to meet your request.

To produce the dataset requested, including identifying all Transmission Demand projects, splitting them into Phase 1 and Phase 2, and summing installed capacities for those achieving M1 and M2, we would need to manually locate, crosscheck, extract and reconcile milestone records for each project individually. This would take a considerable amount of time and resource to develop. Our Connections Team have advised that it would involve 2-3 different roles (1x Data Scientist, 1x Data & Systems Lead, 1x Reporting Insight Lead/Analyst) working on it, which would amount to a minimum of 5 days full-time effort.

We would also need to provide explanatory notes and caveats to this data prior to publication/disclosure in order to ensure that it was not misunderstood by members of the public and this would also require additional time.

Regulation 12(4)(b) of the EIR allows a public authority to refuse a request where the request is manifestly unreasonable. While we are in no way suggesting that your intention is unreasonable, we have determined that responding to your request will impose a disproportionate burden on NESO. The ICO's guidance advises that burden can be thought of in terms of cost, including the cost of staff time spent dealing with the request. However, it can also take account of the distraction of resources, i.e. the disruption to the delivery of other services caused by staff having to spend time dealing with the request.

The use of this exception for information relating to milestones in connection agreements for renewable transmission connected projects in Scotland with a connection date of 2035 or earlier was the subject of a Decision Notice (Reference IC-402508-Z0G9) from the Information Commissioner. Whilst we consider every request for information on a case-by-case basis, the Information Commissioner's analysis of how our current connections information is held and the application of Regulation 12(4)(b) is helpful context. The decision upheld the use of the exception by NESO. The full decision is available on the Information Commissioner's Office (ICO) website: [National Energy System Operator \(NESO\) | ICO](#).

The exception in regulation 12(4)(b) is subject to the public interest test.

NESO is mindful that the EIR requires us to apply a presumption in favour of disclosure when considering the public interest test. There is a public interest in NESO, as a public corporation, being accountable and transparent for its activities. Disclosure of the information may increase public understanding of decision making and facilitate participation in Transmission Demand projects. It could also increase public understanding of connections and connections reform.

Public authorities must, however, be protected from any disproportionate burden caused by requests for information. It is not in the public interest for NESO's resources to be diverted away from its key functions. This activity would necessitate resource from NESO teams that are currently assigned to the connections reform programme. Whilst we intend to build the functionality to support such requests in the future, our priority at the time being is delivering the next stage of the connections reform programme.

Despite the presumption in favour of disclosure, the excessive burden of responding to your request means that we conclude the public interest lies in maintaining the exception in Regulation 12(4)(b) of the EIR.

We are mindful that the ICO's guidance recommends that before applying Regulation 12(4)(b) solely because of cost or burden, a public authority should consider whether it's more appropriate to rely on regulation 7(1) of the EIR to extend the time for complying with a request. However, we have concluded that an extension would not be appropriate in this case.

This concludes our response to your request.

Advice and assistance

Regulation 9 of the EIR requires a public authority to provide advice and assistance to requesters. When refusing a request under Regulation 12(4)(b) as manifestly unreasonable because of the burden or cost, there is an expectation that a public authority should provide the requester with reasonable advice and assistance to help them submit a less burdensome request.

The request is for a large dataset, and it is difficult for us to advise on how you may refine your request aside from suggesting that you limit the scope of the request to a significantly smaller number of projects.

The Existing Agreement (EA) Register details all projects that applied for "Gate 2" in the Connections Reform process where consent was given for inclusion in the EA Register:

- <https://www.neso.energy/document/373996/download>

This is not a complete list of projects as only those that consented to inclusion in the Register are listed. Some of those projects are 'Transmission Connected Demand'.

We do not know whether a more focussed request would meet your requirement. A request for information on a more focussed number of projects may enable us to comply with your request without it imposing a disproportionate burden on NESO to respond. It is difficult to provide a clear time estimate per project as the circumstances and records for each will differ.

There is no requirement under the legislation for you to explain the reasons for your request or how you intend to use the requested information, but if you feel able to provide some further context or explanation, this may help us to understand your requirements and assist you in further refining your request.

Should you submit a refined request relating to a significantly more discrete set of projects, we will reassess the impact on the organisation of compliance and respond accordingly.

Further information

NESO, in collaboration with the networks, industry, government and Ofgem has delivered a transformational change to the way that the grid connections process operates.

Information on Connections Reform is available here:

- [Connections Reform | National Energy System Operator.](#)
- [About Connections Reform | National Energy System Operator](#)

A key part of this reform is the introduction of the new Gate 2 to Whole Queue (G2TWQ) process, which ensures that only projects that are ready to go and are aligned to the [UK Government's Clean Power Action Plan](#) progress through to the new connections delivery pipeline.

The Gate 2 Criteria Methodology and Connections Network Design Methodology can be found here:

- [Connections Reform design documents and methodologies.](#)

On 8 December 2025 NESO began informing Customers of the outcome of their applications and published the results of the new connections delivery pipeline. Further detailed results data was published in January 2026:

- [Connections Reform Results | National Energy System Operator.](#)
- [Connections Reform: Detailed Results Data](#)

The published information provides a high-level view of the reformed pipeline. Further aggregated information on the new connections pipeline will be made available over the coming weeks and months.

The TEC Register is a publicly available list of projects that hold contracts for Transmission Entry Capacity (TEC) with NESO. These include existing and future connection projects and projects that can be directly connected to the National Electricity Transmission System (NETS) or make use of it.

The current [TEC register](#) shows the contracted position at the date published and does not yet show the outcome of the G2TWQ process. If a project has been made a Gate 1 or Gate 2 offer this will be updated on the TEC Register once the Gate 1 or Gate 2 agreement has been countersigned by NESO. Until that point, the field specifying Gate 1 or Gate 2 will remain blank.

We do not currently maintain a single register of demand connections. The data is currently held in various data sources including contracts. We have previously had enquiries about providing a demand register and are considering this as a development piece, but it would take some considerable time to produce.

Next steps

If you are dissatisfied with our handling of your FOI/EIR request, you can ask us to review our response. If you want us to carry out a review, please let us know within 40 working days and quote the reference number at the top of this letter. You can find our procedure here: [Freedom of Information and Environmental Information Regulations | National Energy System Operator](#). The ICO's website also provides guidance on the internal review process: [What to do if you are dissatisfied with the response | ICO](#).

If you are still dissatisfied after our internal review, you can complain to the Information Commissioner's Office (ICO). You should make complaints to the ICO within six weeks of receiving the outcome of an internal review. The easiest way to lodge a complaint is through their website: www.ico.org.uk/foicomplaints. Alternatively, they can be contacted at: Wycliffe House, Water Lane, Wilmslow, SK9 5AF.

Thank you for your interest in the work of the National Energy System Operator (NESO).

Regards,

The Information Rights Team, National Energy System Operator (NESO)